

1 15A NCAC 12H .0401 is proposed for re-adoption as follows:

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3 **15A NCAC 12H .0401 MANAGEMENT PLAN**

4 A management plan shall be prepared for each dedicated Nature preserve. The Articles of dedication shall assign
5 responsibility for the preparation of the management plan. The Secretary of the Department of Natural Resources
6 ~~and Community Development and Cultural~~ or his designee shall ~~have the responsibility for approval of review~~ all
7 management plans and their ~~revisions, revisions, and shall approve those plans that implement the principles set forth~~
8 in Rule .0402 of this Section. The Secretary or his designee shall monitor all dedicated preserves and report violations
9 of the approved plan, ~~or other~~ situations that may violate the Articles of dedication, ~~or which may be actions~~ harmful
10 to the natural resources of the preserve. In the event that the owner or the agency managing the dedicated preserve
11 does not adopt an approved management plan or does not adhere to the provisions of the plan, the Secretary may
12 request the Department of Administration to take appropriate action, which may include ~~but is not limited to,~~
13 mediation, reallocation of the land to another agency, or referral to the Office of the Attorney General.

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15 *History Note: Authority G.S. ~~113-3; 113-8; 113A-164; 113A-164.4~~113A-164.7 143B-135.256; 143B-135.262;*
16 *143-341; 143-342;*
17 *Eff. January 1, ~~1986~~; 1986.*
18 *Amended Eff. December 31, 2016.*
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